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TENTATIVE RULING

July 16, 2026

25SMCV00743 (Moncada v. Carteg
Construction Corporation, et. al.)

RELEVANT BACKGROUND

Procedural Background

On February 11, 2026, plaintiff Jesus Rosas Moncada (Plaintiff) filed his complaint against defendants Carteng Construction Corporation (CCC); Martin Alexander Carteng (Carteng); Carmelino Artemio Matul Roblero (Roblero); 1633 Camden Holdings, LLC (Camden); Siavosh Showghi, Aka Siavash Showghi (Showghi); and Does 1 to 50. Plaintiff alleges three causes of action: (1) negligence; (2) negligent hiring, training, and/or retention; and (3) premises liability.

On February 24, 2026, the Court sustained Showghi's demurrer to the complaint with leave to amend. (2/24/26 Minute Order.) That Court's ruling on the demurrer to the Complaint explained, "the Complaint does not state facts sufficient to constitute causes of action against Showghi for negligence, negligent hiring, training, and/or supervisions, or premises liability. Showghi has submitted judicially noticed documents showing that the Property is owned by Camden Holdings. ... The Complaint does not sufficiently allege alter ego liability to pierce the

corporate veil, as there are no allegations demonstrating a unity of interest and ownership, or an inequitable result if the acts in question are treated as those of the corporation alone. Nor does the Complaint allege facts showing direct supervision / control by Showghi or that Showghi personally participated in tortious conduct that caused injury to support theories of vicarious or premises liability.” (Id.)

On March 26, 2026, Plaintiff filed his operative first amended complaint (FAC) alleging the same causes of action against the same defendants. Relevant to the instant motion, Plaintiff amended to add allegations regarding alter ego liability with respect to Showghi. (See FAC ¶ 10-14.)

Factual Background

Plaintiff alleges that on August 23, 2023, he was performing work at 1633 Camden Ave., Los Angeles, CA 90025 (Subject Property) when two 16-foot-long pieces of wood, each weighing approximately 125 pounds, fell from a height of 10 feet, and struck Plaintiff on the head and body, causing Plaintiff to lose balance and fall to the ground. (FAC ¶ 21.) Plaintiff alleges that Defendants were negligent in the use and/or maintenance of the Subject Property. (Id. ¶ 22.) Specifically, Plaintiff alleges that Defendants failed to use reasonable care to discover any unsafe conditions and to repair, replace, or give adequate warning of anything that could be reasonably expected to harm Plaintiff. (Id. ¶ 23.)

Relevant to the instant motion, Plaintiff alleges that Camden was the alter ego of Showghi. (FAC ¶ 10-14.) Plaintiff further alleges that all of the defendants “owned, leased, possessed, occupied, managed, inspected, repaired, serviced, maintained, operated, supervised, and/or otherwise controlled, the Subject Property.” (Id. ¶ 19.)

INSTANT MOTION

On May 5, 2026, Showghi filed the instant demurrer to the FAC. Plaintiff filed an opposition, and Showghi filed a reply.

MEET AND CONFER

The Court finds that

Showghi has satisfied the meet and confer requirement. (See Hahn Decl., Ex. 5.)

EVIDENTIARY OBJECTIONS

Plaintiff objects to

exhibits B [deed of trust], C [Articles of Organization of Camden Holdings], and D [Contract between Camden and Carteng] to the Hahn Declaration.

Plaintiff's objections

are sustained. The Court did not rely on the exhibits in ruling on the instant demurrer. Rather, as set forth below, the demurrer is sustained with leave to amend based on the lack of any factual allegations in support of the conclusory statements to support alter-ego liability. (See FAC ¶ 10-14.)

DISCUSSION

I.

TIMELINESS

Plaintiff

argues that the Demurrer is untimely because the FAC was served via email on March 26, 2026, and the time for responding thereto expired on April 28, 2026. But attached as Exhibit G to the Declaration of Adrienne Hahn is an email exchange between the parties' respective attorneys, dating from April 9 to April 15, 2026, whereby Plaintiff's counsel expressly consented and agreed to extend Moving Defendant's time to respond to the FAC to May 5, 2026, which is the date on which this Demurrer was filed. Pursuant to Code Civ. Proc. section 430.40, subdivision (a), the instant Demurrer is timely because it was filed within the agreed-upon time period for a responsive pleading. (Code Civ. Proc. § 430.40, subd. (a).)

Additionally,

even if the parties had not come to such an agreement regarding the deadline to file the demurrer, the Court would exercise its discretion to consider the demurrer. (See *McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 280 [30-day deadline to file a demurrer pursuant to Code of Civil Procedure section 430.40, subdivision (a), is not mandatory; *Jackson v. Doe* (2011) 192 Cal.App.4th 742, 749 [trial court has discretion to consider an

untimely demurrer].)

II.

DEMURRER

In

order to state a claim for negligence, Plaintiff must allege the elements of (1) “the existence of a legal duty of care,” (2) “breach of that duty,” and (3) “proximate cause resulting in an injury.” (*McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.)

The elements of a cause

of action for negligent hiring, retention, or supervision are: (1) the employer’s hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (*Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 836-837.)

“The elements of a cause of action

for premises liability are the same as those for negligence: duty, breach, causation, and damages.” (*Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998.) “Premises liability is grounded in the possession of the premises and the attendant right to control and manage the premises.” (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158, quotation marks omitted.)

Alter-Ego Liability

““Ordinarily,

a corporation is regarded as a legal entity separate and distinct from its stockholders, officers and directors. Under the alter ego doctrine, however, where a corporation is used by an individual or individuals, or by another corporation, to perpetrate fraud, circumvent a statute, or accomplish some other wrongful or inequitable purpose, a court may disregard the corporate entity and treat the corporation's acts as if they were done by the persons actually controlling the corporation....” (*Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.* (2013) 217 Cal.App.4th 1096, 1106-07.) When a court does so, it is said to have “pierced the corporate veil.” (*Ibid.*)

“[T]wo

conditions must be met before the alter ego doctrine will be invoked. First,

there must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist. Second, there must be an inequitable result if the acts in question are treated as those of the corporation alone. Among the factors to be considered in applying the doctrine are commingling of funds and other assets of the two entities, the holding out by one entity that it is liable for the debts of the other, identical equitable ownership in the two entities, use of the same offices and employees, and use of one as a mere shell or conduit for the affairs of the other. Other factors which have been described in the case law include inadequate capitalization, disregard of corporate formalities, lack of segregation of corporate records, and identical directors and officers. No one characteristic governs, but the courts must look at all the circumstances to determine whether the doctrine should be applied. Alter ego is an extreme remedy, sparingly used.” (Sonora Diamond Corp. v. Superior Court (2000) 83 Cal.App.4th 523, 538-539.)

“To recover on an alter ego theory, a plaintiff need not use the words ‘alter ego,’ but must allege sufficient facts to show a unity of interest and ownership, and an unjust result if the corporation is treated as the sole actor. An allegation that a person owns all of the corporate stock and makes all of the management decisions is insufficient to cause the court to disregard the corporate entity.” (Leek v. Cooper (2011) 194 Cal.App.4th 399, 415.)

A court will sustain a demurrer to alter-ego allegations if the facts alleged are insufficient to demonstrate alter-ego liability. (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 74 [sustaining demurrer to alter ego claims without leave to amend where complaint's allegations were “inconsistent with other allegations” and “fail to include facts showing a unity of interest and a resultant injustice, prerequisites to an alter ego theory”].) A plaintiff must allege specifically both of the elements of alter-ego liability, as well as facts supporting each. (Nielson v. Union Bank of California (C.D. Cal. 2003) 290 F.Supp.2d 1101, 1116 [applying California law].)

Here, Showghi argues that the FAC fails to allege facts sufficient to establish alter-ego liability because the allegations in the FAC are conclusory and lack supporting facts.

In

opposition, Plaintiff points to paragraphs 10-14 of the FAC:

Plaintiff

JESUS ROSAS MONCADA is informed and believes and thereon alleges that at all relevant times Defendant 1633 CAMDEN HOLDINGS, LLC was and is the alter ego of Defendant SIAVOSH SHOWGHI, aka SIAVASH SHOWGHI. There exists, and at all times herein mentioned there existed, a unity of interest and ownership between these defendants such that any individuality and separateness between the defendants have ceased to exist.

Plaintiff is

informed and believes, and based thereon alleges that, adherence to the fiction of the separate existence of 1633 CAMDEN HOLDINGS, LLC, on the one hand, and SIAVOSH SHOWGHI, aka SIAVASH SHOWGHI, on the other hand, would permit an abuse of the corporate privilege and would sanction fraud and promote injustice in that SIAVOSH SHOWGHI, aka SIAVASH SHOWGHI has perpetrated fraudulent acts in the name of the 1633 CAMDEN HOLDINGS, LLC, and have never taken the steps to maintain the corporate standing of 1633 CAMDEN HOLDINGS, LLC.

Plaintiff is

informed and believes, and based thereon alleges that 1633 CAMDEN HOLDINGS, LLC is, and at all times herein mentioned a mere shell, instrumentality and conduit through which SIAVOSH SHOWGHI, aka SIAVASH SHOWGHI carried on his businesses and was so inadequately capitalized that, compared with the business to be done by them, and the risks of loss, its capitalization was illusory. SIAVOSH SHOWGHI, aka SIAVASH SHOWGHI completely controlled, dominated, managed and operated 1633 CAMDEN HOLDINGS, LLC, and commingled the assets of each to suit the convenience of SIAVOSH SHOWGHI, aka SIAVASH SHOWGHI and to evade payment of the obligations owed to creditors of 1633 CAMDEN HOLDINGS, LLC, including Plaintiff.

Plaintiff is

informed and believes and based thereon alleges that 1633 CAMDEN HOLDINGS, LLC failed to follow corporate formalities or comply with the general business requirements of the entity.

Plaintiff is

informed and believes, and based thereon alleges that failure to hold SIAVOSH SHOWGHI, aka SIAVASH SHOWGHI liable for the wrongful acts of his alter ego

would lead to an inequitable and unjust result.

(FAC ¶ 10-14.)

The

Court agrees with Showghi that the above allegations are conclusory and lack supporting facts to establish alter-ego liability. For example, Plaintiff's allegation that there is a sufficient unity of interest is conclusory and not supported by any facts. Likewise, Plaintiff's FAC fails to include any actual factual allegations to show that inequitable results will follow if the corporate separateness is respected.

This

is Plaintiff's second attempt adequately to allege alter-ego liability, following the Court's prior sustaining of a demurrer to such allegations. Accordingly, the demurrer to the FAC is SUSTAINED WITHOUT LEAVE TO AMEND.